

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X Plaintiff designates New York County
as the venue of this lawsuit

MOISE BELLO,

Plaintiff,

-against-

Venue is based on
County of occurrence

THE CITY OF NEW YORK,
NYPD OFFICER GERMAINE HALL and
NYPD DETECTIVE JOHN DOE,

Defendants.
----- X

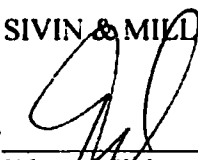
SUMMONS

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 9, 2019

SIVIN & MILLER, LLP

By 

Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK
----- X
MOISE BELLO,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK,
NYPD OFFICER GERMAINE HALL and
NYPD DETECTIVE JOHN DOE,

Defendants.

----- X
Plaintiff, by his attorneys Sivin & Miller, LLP, complaining of defendants, alleges
as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Bronx, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action and within ninety (90) days from the dates when the state-law causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with the City and its co-defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and the City has neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the state-law causes of action accrued herein.

4. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).

5. That at all times herein mentioned, defendant NYPD Officer Germaine Hall (hereinafter “Hall”) was and is an officer employed by the NYPD.

6. That at all times herein mentioned, Hall was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Hall was acting under color of state law.

8. That at all times herein mentioned, defendant NYPD Detective John Doe (hereinafter “Doe”) is a fictitious name intended to designate an NYPD detective whose identity is unknown to plaintiff and who participated in a September 21, 2017 interrogation of plaintiff.

9. That at all times herein mentioned, Doe was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Doe was acting under color of state law.

11. That all of the causes of action asserted herein fall within one or more exceptions set forth in CPLR 1602 with respect to joint and several liability.

THE FACTS

12. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

13. That on or about September 21, 2017, in the County of New York, City and State of New York, the City, by and through its agents, servants and/or employees, including but not limited to Hall, handcuffed and arrested plaintiff at his residence without a warrant and without probable cause to believe that plaintiff had committed or was about to commit any crime.

14. That following the arrest of plaintiff, Hall, Doe, and other NYPD officers forcibly detained and imprisoned plaintiff against his will and without his consent at various locations, including but not limited to a police precinct.

15. That once inside the police precinct, Hall and Doe interrogated plaintiff and improperly induced and coerced plaintiff, by means of physical threats, denial of food and water, and other illegal methods, into drafting and executing a document in which plaintiff “confessed” to various criminal acts of which he was innocent and to which he had not in fact admitted.

16. That among the criminal acts to which Hall and Doe improperly induced and coerced plaintiff to confess was that plaintiff engaged in sexual acts, including genital to genital contact, with a female minor.

17. That on September 21, 2017, defendants also initiated and/or caused to be initiated a criminal prosecution of plaintiff in which plaintiff was falsely charged with Rape in the Second Degree.

18. That in support of the criminal prosecution, Hall executed an accusatory instrument in which he made accusations against plaintiff that were false and which defendants knew were false, including that a 13-year-old girl told Hall that plaintiff placed his penis inside of her vagina.

19. That the prosecution of plaintiff was initiated without probable cause to believe that plaintiff was guilty of the crime with which he was charged.

20. That in further support of the prosecution, Hall and Doe falsely represented to the Office of the District Attorney and to others that plaintiff had confessed to various acts that provided a basis for the charge of Rape in the Second Degree.

21. That in further support of the prosecution, Hall and Doe provided fabricated evidence to the Office of the District Attorney, including but not limited to the document that Hall and Doe improperly induced and coerced plaintiff into drafting and executing.

22. That in further support of the prosecution, Hall and Doe also withheld exculpatory evidence from the Office of the District Attorney, including but not limited to plaintiff's verbal denials that he had engaged in the criminal acts that provided a basis for the charge of Rape in the Second Degree, recordings and/or other documentation of plaintiff's denials, and the fact that accusations against plaintiff had originated not from the minor child, but from the child's mother, who had no direct knowledge of what occurred between plaintiff and the child.

23. That the aforementioned fabricated evidence and the exculpatory evidence that was withheld by defendants constituted material evidence in the underlying prosecution, and evidence that was likely to influence a jury's decision on plaintiff's guilt or innocence and the court's decision on the setting of bail.

24. That as a result of the aforementioned prosecution, fabricated evidence, and withholding of exculpatory evidence, plaintiff suffered a deprivation of liberty, including but not limited to the setting of bail that was higher than it otherwise would have been set, prolonged incarceration, and a prosecution that lasted longer than it otherwise would have lasted.

25. That on or about February 13, 2019, after being prosecuted for seventeen months and having to make numerous court appearances, the criminal charge against plaintiff was dismissed on the merits, and the criminal proceeding terminated favorably to plaintiff.

26. That at all times herein mentioned, Hall and Doe observed and were aware of the illegal and unconstitutional conduct of their fellow officers, had reasonable opportunities to intervene to prevent and/or stop that conduct, and deliberately failed to do so.

27. That the aforesaid actions of defendants were intentional and malicious in nature.

28. That the aforesaid actions of defendants were undertaken with the intent and/or with reckless disregard of the risk of causing plaintiff to suffer extreme emotional distress.

29. That the aforesaid actions of defendants were so outrageous in character and so outside the bounds of civilized society as to shock the collective conscience.

30. That as a result of the aforesaid actions of defendants, plaintiff sustained physical, emotional, and psychological injuries, extreme emotional distress, loss of liberty and freedom, damage to reputation, shame and humiliation, lost earnings, damage to educational opportunity, pain and suffering, loss of enjoyment of life, other economic loss, and other damages.

FIRST CAUSE OF ACTION AGAINST HALL and DOE
(42 U.S.C. § 1983 Arising out of The False Arrest/Imprisonment and Attendant Use of Force)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the aforesaid actions by Hall and Doe in handcuffing, arresting, imprisoning, and physically threatening plaintiff constituted unlawful seizures of plaintiff in violation of the Fourth Amendment and Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

SECOND CAUSE OF ACTION HALL and DOE
(42 U.S.C. § 1983 Claim Arising out of Malicious Prosecution)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforesaid actions by Hall and Doe in maliciously prosecuting and/or maliciously causing the prosecution of plaintiff constituted an unlawful seizure of plaintiff in violation of the Fourth Amendment and Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under New York State Law)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforesaid actions of Hall and Doe and the other NYPD officers constituted a malicious prosecution of plaintiff, for which Hall, Doe, and the other NYPD officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST HALL and DOE
(42 U.S.C. § 1983 Claim Arising Out of Denial of Right to Fair Trial)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforesaid actions by Hall and Doe in fabricating evidence and withholding exculpatory evidence constituted a denial of plaintiff's right to a fair trial in violation of the Fifth, Sixth, and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST HALL and DOE

(Intentional Infliction of Emotional Distress Under New York State Law)

39. Plaintiff repeats and realleges each and every allegation set forth above as

though fully set forth at length herein.

40. That the aforesaid actions by Hall and Doe constituted an intentional infliction

of emotional distress, for which Hall and Doe are liable under New York State law.

SIXTH CAUSE OF ACTION AGAINST HALL and DOE

(42 U.S.C. § 1983 Based on Failure to Intervene)

41. Plaintiff repeats and realleges each and every allegation set forth above as

though fully set forth at length herein.

42. That Hall’s and Doe’s failure to intervene to prevent and/or stop the illegal and

unconstitutional conduct of their fellow officers resulted in the aforementioned violations of

plaintiff’s constitutional rights, and entitles plaintiff to recover damages pursuant to 42 U.S.C. §

1983.

SEVENTH CAUSE OF ACTION AGAINST THE CITY

(“Monell” Claim)

43. Plaintiff repeats and realleges each and every allegation set forth above as

though fully set forth at length herein.

44. That the aforesaid incidents and resulting damage to plaintiff were due to a

deliberate indifference by the City to a pattern of unconstitutional conduct by the involved NYPD

officers, including Hall and Doe, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

WHEREFORE, plaintiff demands judgment against defendants, and each of them,

on the foregoing causes of action for compensatory damages in an amount that exceeds the

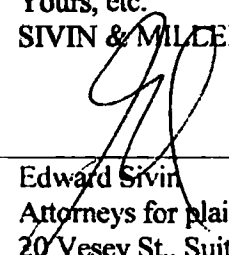
jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter,

and for punitive damages against defendants Hall and Doe, and attorney's fees against all

defendants pursuant to 42 U.S.C. § 1988, and plaintiff also demands the costs and disbursements

of this action.

Dated: New York, New York
December 9, 2019

Yours, etc.
SIVIN & MILLER, LLP

By _____
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

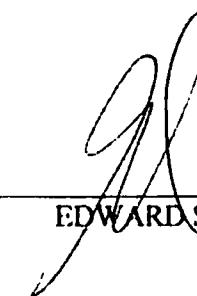
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
December 9, 2019



EDWARD SIVIN